

Founding Board Recruitment Kit

Formation Board Design, Role Profiles, Candidate Screening, Outreach & Interview
Tools

Version 0.4 | September 19, 2026

[[LEGAL_CORPORATE_NAME]] / [[PUBLIC_COMMUNITY_NAME]]

Pre-filing working draft. Counsel/CPA and future Board review required before legal or tax submission. Not legal or tax advice.

Purpose

Give the Founder a professional, anti-capture recruitment system for the two directors legally required and the four additional directors preferred for formation.

v0.4 Selected Baseline - Provisional Organizational Decisions

These are design defaults for drafting. They do not become legally operative until adopted/filed by the appropriate persons.

Topic	Working decision	Why
Tennessee corporation type	Public benefit religious nonprofit corporation	Intended religious, educational and charitable purposes serve public rather than mutual/private benefit.
Statutory members	No statutory members at formation	Avoids creating a corporate electorate before a real community exists; participant rights remain protected by charter/bylaws/policies.
Board	5-seat formation target; 7-11 mature board; $\geq 2/3$ independent mature board	Tennessee minimum is 3; stronger internal standard distributes power and supports founder accountability.
Founder	Founder + President/Executive Director + Director	Separates historical founder status from corporate sovereignty while allowing operational leadership.
Chair	Independent person other than Founder/President	Prevents executive and board oversight from collapsing into one office.
Secretary	Separate person from President	Tennessee law requires President and Secretary and forbids one person from holding both offices simultaneously.
Treasurer	Prefer independent/separate person	Financial authority should not be concentrated with spiritual/executive authority.
Federal application	Full Form 1023	Provides a detailed record appropriate to a complex religious/educational/charitable organization.
Initial public-charity class	509(a)(1)/170(b)(1)(A)(vi), subject to actual funding model	Intended reliance on donations/grants/public support is compatible with this classification; verify projections before filing.
Church classification	Defer until actual congregation/services/government/worship facts exist	IRS applies a facts-and-circumstances church analysis and generally expects a congregation or religious membership group meeting for worship.
Founder compensation	Initially unpaid except policy-compliant expense reimbursement; later prospective reasonable compensation after independent approval	Avoids self-dealing while preserving a path to legitimate paid full-time leadership.
Fiscal year	December 31	Selected by Founder.
Filing sequence	Prepare -> recruit board -> select name -> counsel review -> file TN charter -> organize -> EIN -> banking -> Form 1023 -> public launch	Reduces avoidable amendments and avoids launching high-risk programs before controls exist.

Founding Board Recruitment Strategy

Immediate legal minimum and governance target

Tennessee nonprofit law requires at least **three natural-person directors**. The project currently has one identified director: the Founder. Therefore the absolute legal gap is **two additional directors**.

The governance target is stronger: recruit **four additional formation directors**, producing a five-person founding board, then expand to **seven directors within approximately 180 days** of organization if qualified people are available.

Five-seat formation board

Seat	Primary function	Independence target	Initial priority
1. Founder / President-Executive Director	Vision, execution, research/religious formation	Not independent	Identified
2. Independent Chair	Board leadership, founder accountability, governance	Independent	**Highest**
3. Secretary / Governance Director	Corporate records, minutes, compliance, document hierarchy	Independent preferred	**Highest**
4. Treasurer / Finance Director	Budget, internal controls, compensation/related-party oversight	Independent	High
5. Safeguarding & Institutional Integrity Director	complaint independence, safeguarding, ethics, anti-retaliation	Independent	High

Seven-seat mature-board additions

6. **Community / charitable-program director** - practical service, community needs, nonprofit operations.

7. **Religious studies / formation / education director** - intellectually serious religious formation without being dependent on the Founder for livelihood or status.

The Board may later add other competencies: law, property/development, HR, cybersecurity/privacy, fundraising, clinical/safeguarding expertise, education, housing, or community development.

Candidate characteristics

Seek people who can:

- support the organization's charitable/religious purpose without treating the Founder as infallible;
- distinguish loyalty to mission from loyalty to a person;
- read financial statements or learn to do so;
- protect a complainant even when an allegation is embarrassing;
- say "no" to the Founder/President when fiduciary duty requires it;
- tolerate theological uncertainty and good-faith disagreement;
- understand that board service creates legal/fiduciary responsibilities;
- maintain confidentiality without confusing confidentiality with concealment;
- commit enough time to meetings, preparation, training, and committee work.

Independence red flags

A person is generally a poor choice for an "independent" seat if the person is:

- the Founder's spouse, parent, child, sibling, or other close family member;

- financially dependent on the Founder;
- an employee or direct subordinate of the Founder/President;
- a material vendor, landlord, lender, borrower, business partner, or joint investor;
- dependent on organization-provided housing or substantial support;
- in a pastoral/counseling relationship with the Founder that would inhibit oversight;
- unwilling to contemplate investigating, suspending, or removing the Founder if facts warranted it.

A conflict does not always disqualify a person from all service, but it changes whether the person can count as independent and may require recusals.

Recruitment order

1. Independent Chair.
2. Separate Secretary who is comfortable with formal records and compliance.
3. Treasurer/finance director.
4. Safeguarding/integrity director.
5. Additional mission/community expertise.

Do **not** recruit merely to satisfy a number. A board filled with people who will automatically agree with the Founder is structurally weaker than a temporarily smaller board that is actively recruiting competent independent directors, subject to Tennessee's legal minimum.

Founding Director - Role Description

Purpose of the role

A director governs the corporation and protects its religious/charitable mission, assets, people, integrity system, and long-term institutional independence. The role is not honorary and does not exist to ratify the Founder's preferences.

Expected commitments

- Attend approximately [[6-10]] board meetings per year during formation, plus committee work.
- Review materials before meetings.
- Complete conflict/independence disclosure and annual integrity certification.
- Complete governance, safeguarding, financial-integrity, and anti-retaliation training appropriate to the role.
- Participate in executive sessions without management where needed.
- Maintain confidentiality while recognizing lawful reporting duties and non-concealment obligations.
- Serve an initial term of [[2 or 3 years]] under the final bylaws.

Core duties

- adopt and oversee strategy, budget, policies, and executive leadership;
- hire/evaluate/remove the President/Executive Director where required;
- approve executive/founder compensation only through disinterested process;
- monitor conflicts and related-party transactions;
- ensure safeguarding and complaint systems remain independent;
- oversee significant property, debt, housing, grants, employment, and expansion decisions;
- preserve participant freedom of conscience, safe exit, due process, and non-retaliation;
- ensure doctrine/revelation processes do not bypass civil or corporate controls;
- ensure truthful public reporting and financial stewardship.

What directors are not being asked to do

Directors are not required to:

- treat the Founder as a prophet, infallible teacher, or permanent leader;
- agree with every theological proposition;
- provide personal funding;
- assume daily operational management unless separately engaged;
- conceal misconduct to protect the organization;
- guarantee the success of the project.

Compensation

Founding directors should ordinarily serve without compensation for board service, with policy-compliant reimbursement of reasonable expenses. Any future director compensation requires disinterested board analysis and documentation.

Priority Officer Profiles

Independent Board Chair

The Chair should be capable of leading the Board **independently of the President/Founder**. Primary duties include agenda partnership, executive-session leadership, annual Founder/CEO evaluation, conflict escalation, succession/removal process integrity, and ensuring the Board itself follows the anti-coercion framework.

Preferred background: nonprofit governance, law, executive leadership, institutional ethics, or comparable fiduciary experience.

Must be able to say: "I support the mission, but I do not work for the Founder."

Secretary

The Secretary is the institutional-memory role: minutes, resolutions, charter/bylaws, registers, board notices, document versions, officer/director roster, annual-report calendar, and authentication of records.

Preferred background: administration, law, compliance, records, governance, or meticulous professional operations.

Critical legal point: the President and Secretary cannot be the same person under current Tennessee nonprofit law.

Treasurer / Finance Director

The Treasurer leads board-level financial oversight rather than personally doing every bookkeeping task. The role should ensure bank reconciliations, budget review, restricted-fund tracking, approval controls, compensation records, related-party review, and external accountant engagement.

Preferred background: accounting, finance, business operations, banking, nonprofit finance, audit, or strong financial literacy.

Safeguarding & Institutional Integrity Director

This director is the board-level owner of complaint-channel independence, safeguarding oversight, retaliation monitoring, independent investigations, and external integrity review.

Preferred background: safeguarding, social services, HR, compliance, investigations, legal ethics, child protection, clinical administration, institutional risk, or comparable work. The person should not be under the Founder's pastoral, employment, housing, or financial control.

Founding Board Candidate Screening Questionnaire

Candidate: [[NAME]] Date: [[DATE]] Proposed role: [[ROLE]]

Mission and governance

1. What interests you about governing this organization?
2. What concerns would you want resolved before joining?
3. How do you understand the difference between supporting a founder and exercising independent fiduciary judgment?
4. Could you vote against the Founder/President on compensation, discipline, policy, or strategy if your judgment required it?
5. Could you support an independent investigation of the Founder or another senior religious leader?
6. How comfortable are you with a religious organization that explicitly protects doubt, criticism, outside information, and voluntary exit?

Time and competence

7. Can you reliably prepare for and attend board/committee meetings?
8. What experience do you bring in governance, finance, law, safeguarding, education, ministry/religion, research, nonprofit operations, fundraising, property, or community work?
9. What board training would you need?

Conflicts / independence

10. Are you related by family or intimate relationship to the Founder or another proposed director/officer?
11. Do you have an employment, contracting, landlord/tenant, lending, investment, or business relationship with them or the organization?
12. Do you receive or expect significant financial support, housing, employment, pastoral counseling, or other dependency from the Founder or organization?
13. Do you have any relationship that could make it difficult to investigate, discipline, remove, or contradict a senior leader?
14. Identify any other actual or apparent conflict.

Safeguarding and institutional ethics

15. Would you be willing to make or support an external child-safety report even if a respected leader objected?
16. What does retaliation against a complainant look like to you beyond firing or formal punishment?
17. What should happen if the institution's reputation conflicts with truthful disclosure of serious misconduct?

Candidate questions

18. What would you need from the organization to serve responsibly?
19. What information would you want access to as a director?
20. What would cause you to resign?

Screening outcome

- ☐ Advance
- ☐ Advance with disclosed conflict/conditions

- ☐ Do not advance for independent seat; consider advisory role
- ☐ Do not advance

Reason: [...]

Founding Board Invitation - Reusable Draft

Dear [[NAME]],

I am developing a Tennessee nonprofit religious organization intended to combine religious community, worship, historical/religious research, education, publication, pastoral care, charitable service, and - only as the institution matures - programs such as retreats, clergy formation, children's programming, property, and intentional community.

I am looking for founding directors who will **govern the organization rather than simply support me personally**. A central design requirement is that the founder must remain accountable to an independent board. The governing framework expressly protects freedom of conscience, criticism, safe exit, external reporting, safeguarding, financial transparency, independent investigations, and removal of any leader, including the founder.

I would like to explore whether you might be willing to serve as a founding director, potentially in the role of [[ROLE]].

The role involves real fiduciary responsibility. It does not require personal financial contributions, unquestioning agreement with me, or acceptance of every developing theological conclusion. It does require good-faith support for the organization's charitable/religious mission, willingness to exercise independent judgment, and commitment to the integrity safeguards that constrain leadership.

Before either of us commits, I would provide the draft charter/bylaws, participant Bill of Rights, founder limitations, board role description, conflict/independence questionnaire, and a clear description of expected time and responsibilities. We would then have a candid conversation about the project, its risks, and your questions.

If that conversation would interest you, I would value the opportunity to discuss it.

Sincerely,

[[FOUNDER NAME]]

Founder / proposed President & Executive Director

Board Candidate Interview Guide

Part A - Explain before evaluating

Give the candidate a short factual briefing:

- the corporation has not yet filed because the final name and founding team are still being assembled;
- Tennessee requires at least three directors;
- the organization is currently designed as a nonmember public-benefit religious corporation;
- the Founder is expected to become President/Executive Director but not Board Chair;
- the Founder has no constitutional veto, life tenure, self-compensation, or immunity from investigation/removal;
- the Board will oversee compensation, money, safeguarding, complaints, investigations, property, and high-dependency programs;
- the organization intends to pursue full 501(c)(3) recognition.

Part B - Explore judgment

Ask scenario questions:

1. A large donor says funding will stop unless the Board suppresses a substantiated report about a senior leader. What should the Board do?
2. The Founder says a spiritual experience demonstrates that a Board safeguard should be suspended. What should happen?
3. A complaint against the Founder arrives through the independent channel. Who controls intake and investigator selection?
4. The organization wants to hire a Founder's relative. What process is necessary?
5. A member leaves publicly and criticizes the religion. What may the organization do, and what must it not do?
6. The Founder needs a salary to work full time. How should the Board approach the question?
7. Housing becomes available to staff/participants. What new dependency risks arise?

Part C - Candidate due diligence

- Verify identity/contact information.
- Obtain conflict/independence disclosure.
- Request relevant resume/background information.
- Conduct role-appropriate reference/background checks with consent.
- Discuss availability and term.
- Discuss D&O insurance status/plan.
- Provide governing documents before acceptance.

Part D - Decision

The Governance/Nominating body should record why the person is qualified, whether they are independent, disclosed conflicts, expected committee assignment, and any onboarding requirements.

Next Execution Queue - v0.4 to v0.5

Can proceed now without more Founder input

1. Maintain v0.4 source documents and financial model.
2. Prepare candidate-specific board packets once names are supplied.
3. Create final name-clearance checklist and Tennessee filing checklist.
4. Refine Form 1023 narrative from actual program decisions as they become concrete.
5. Create charitable-assistance procedure and IP ownership schedule template.

Requires external human input before completion

1. **Name selection** - cannot file a charter without a real corporate name.
2. **Two additional directors minimum** - Tennessee board cannot consist only of Founder.
3. **Separate Secretary** - Founder cannot simultaneously hold President and Secretary.
4. **Registered/principal addresses** - required on Tennessee charter.
5. **Budget assumptions** - IRS projections must be good-faith facts, not invented numbers.

Recommended next real-world action

Begin board recruitment **before filing**. The Founder should approach candidates using the v0.4 recruitment kit, aiming first for an independent Chair and Secretary. In parallel, narrow the name list to three finalists. Those two actions unlock the v0.5 filing-ready charter and organizational packet.

Current Source Notes - v0.4

Checked: September 19, 2026. Re-check before filing.

Tennessee

- Tenn. Code Ann. § 48-52-102 (2025), Charter - public/mutual benefit status, religious-corporation statement, registered agent/office, incorporator, principal office, nonprofit statement, member/nonmember statement, dissolution provisions: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-102/>
- Tenn. Code Ann. § 48-54-101 (2025), Corporate name - distinguishability and restrictions on false affiliation/sponsorship: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-54/section-48-54-101/>
- Tenn. Code Ann. § 48-54-102 (2025), Reserved name - four-month reservation: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-54/section-48-54-102/>
- Tennessee Secretary of State Business Forms & Fees - current list shows \$20 nonprofit name reservation and \$100 nonprofit charter filing: <https://sos.tn.gov/businesses/forms-and-fees>
- Tenn. Code Ann. § 48-58-103 (2025) - board must have at least three natural persons: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-103/>
- Tenn. Code Ann. § 48-58-104 (2025) - nonmember corporation directors elected/appointed/designated as charter/bylaws provide: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-104/>
- Tenn. Code Ann. § 48-58-401 (2025) - every nonprofit has a President and Secretary; same individual cannot simultaneously hold both: <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-4/section-48-58-401/>

IRS

- Instructions for Form 1023 - activities narrative, financial projections, public-charity classifications, church Schedule A, compensation/conflicts: <https://www.irs.gov/instructions/i1023>
- Form 1023 narrative details: <https://www.irs.gov/charities-non-profits/form-1023-detail-required-in-narrative-description-of-activities>
- Form 1023 required financial information: <https://www.irs.gov/charities-non-profits/form-1023-required-financial-information>
- Form 1023 compensation/financial relationships: <https://www.irs.gov/charities-non-profits/form-1023-required-information-about-compensation-and-other-financial-information>
- Form 1023 conflict-policy purpose: <https://www.irs.gov/charities-non-profits/form-1023-purpose-of-conflict-of-interest-policy>
- Form 1023-EZ instructions - applicant seeking church recognition is ineligible for 1023-EZ: <https://www.irs.gov/instructions/i1023ez>
- Form 1023 user fee - currently \$600, paid through Pay.gov; subject to change: <https://www.irs.gov/charities-non-profits/form-1023-and-1023-ez-amount-of-user-fee>
- Public charity classification overview: <https://www.irs.gov/charities-non-profits/determine-your-foundation-classification>

Limited public-name collision screen

General web searches identified active/current use of "The Common Assembly," "The Sacred Commons," "Open Sanctuary," "Common Sanctuary," and "The Sacred Inquiry." This is not a trademark or Tennessee-entity clearance and is only a reason not to prioritize those exact identities.